

The Medical Council Of India (Criteria For Identification Of Students Admitted In Excess Of Admission Capacity Of Medical Colleges) Regulations, 1997

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UNION OF INDIA

India

The Medical Council Of India (Criteria For Identification Of Students Admitted In Excess Of Admission Capacity Of Medical Colleges) Regulations, 1997

Rule

THE-MEDICAL-COUNCIL-OF-INDIA-CRITERIA-FOR-IDENTIFICATION-OF-STUDENTS-ADMITTED-IN-EXCESS-OF-ADMISSION-CAPACITY-OF-MEDICAL-COLLEGES-REGULATIONS-1997 of 1997

Published on 23 August 1997

Commenced on 23 August 1997

[This is the version of this document from 23 August 1997.]

[Note: The original publication document is not available and this content could not be verified.]

The Medical Council Of India (Criteria For Identification Of Students Admitted In Excess Of Admission Capacity Of Medical Colleges) Regulations, 1997

Published vide Notification No. MCI-32(41)/97-Med.(N), dated 23.8.1997, published in the Gazette of India, Part III,

Section 4, dated 23.8.1997.

15.

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In exercise of the powers conferred by clause (fc) of section 33 of the Indian Medical Council Act, 1956 (102 of 1956

), the Medical Council of India with the previous sanction of the Central Government hereby makes the following regulations relating to identification of students admitted in excess of the approved admission capacity of medical college, namely:--

1.

Short title and commencement .-(1) These regulations may be called the Medical Council of India (Criteria for Identification of Students Admitted in Excess of Admission Capacity of Medical Colleges) Regulations, 1997.

(2)

These regulations shall come into force on the date of their publication in the Official Gazette.

2.

Application .-These regulations shall apply to all medical colleges/ institutions/universities conducting undergraduate/postgraduate medical courses (hereinafter referred to as the medical college).

3.

Definitions .-Under these regulations unless the context otherwise requires:--

(a)

"Act" means the Indian Medical Council Act, 1956 (102 of 1956

) as amended from time to time;

(b)

"Admission capacity" has the same meaning as referred to in Explanation 2 of section 10-A of the Act;

(c)

"Competent Authority" means the Central Government or State Government or medical college or any other authority as may be designated by the Central Government or the State Government, as the case may be, to allot students for admission to various medical colleges in a State or Union Territory. Where there is no designated authority as defined in the Medical College conducting undergraduate or postgraduate medical course shall be deemed to be the competent authority for that medical college;

(d)

All other words and expressions shall have the same meaning as defined in the Act.

4.

Sanctioned intake capacity in medical college .-The Council shall every year, prior to the start of undergraduate/postgraduate academic medical course, intimate the medical colleges and State/Union Territory Governments, the sanctioned intake capacity of the students for undergraduate/postgraduate courses in medical colleges.

5.

Medical colleges to furnish year-wise list of students .-All medical colleges conducting undergraduate/postgraduate course shall, within 3 months of publication of these regulations in the Official Gazette, furnish year-wise lists of students admitted during the academic sessions commencing in the year 1992 till the year in which these regulations are published for Bachelor of Medicine and Bachelor of Surgery and postgraduate course (for each course separately) to the Council.

6.

Furnishing of list by competent Authority .-The competent authority shall furnish lists of students admitted during each academic year for Bachelor of Medicine and Bachelor of Surgery and postgraduate courses to the Council and State Medical Council and the affiliating university within one month of the closure of admission or 31st October of that year, whichever is earlier.

7.

List of students to be furnished to the Council .-A list of students to be furnished under these regulations to the Council shall be prepared by a competent authority in order of merit on the basis of which admissions have been made. The list

shall be supported by affidavit of the Dean/Principal of a Medical College stating the sanctioned admission capacity of that medical college and that no admission has been made in excess of the admission capacity. The names of students admitted in a medical college through all India Entrance Examination/ Central Pool Quota/Mandatory Reservation for Scheduled Castes/Scheduled Tribes, shall find mention in the list.

8.

Matters relating to excess admission to be decided by the Council .-All matters relating to excess admission of students shall be decided by the Council taking into account the list furnished to the Council by a competent authority and the admission capacity fixed for the medical college. After it is found by the Council that excess admissions have been made, the students lower down in the list shall be treated to be admitted against the increase in admission capacity to the extent of excess admission. The students admitted through All India Entrance Examination/Central Pool Quota/Mandatory Reservation for Scheduled Castes/Scheduled Tribes, etc., shall be included within the fixed admission capacity.

9.

Identification of excess admission and non-recognition of medical qualifications .-The Council shall find out the excess admissions in a medical college and no medical qualification granted to any identified student of the medical college which comes under the excess admission shall be recognised medical qualification for the purpose of Indian Medical Council Act, 1956 (

102 of 1956

). The names and other particulars of students so identified shall be intimated by the Council to all concerned for taking action under the provisions of the Act. Any dispute in the matter of identification of excess admission of student(s) in a medical institution shall be referred to the Central Government for decision.

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